

22STCV12980 22STCV12980

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-22

Motion: MOTION FOR PROTECTIVE ORDER AND MOTION FOR INDEPENDENT MEDICAL EXAMINATION

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Case Number: 22STCV12980 Hearing Date: July 22, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

MABAS BAUSLEY,

Plaintiff,

vs.

5460 SAN VICENTE

BLVDAPARTMENTS; FRED LEEDSPROPERTY MANAGEMENT, INC.;MAXIMILIAN ROBERT LEEDS;

and DOES 1 through 20, inclusive,

Defendants.

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CASE

NO: 22STCV12980

[TENTATIVE]

ORDER RE: MOTION FOR PROTECTIVE ORDER AND MOTION FOR INDEPENDENT MEDICAL
EXAMINATION

Dept.

I

HEARING

DATE: July 22, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: APRIL 18, 2022

TRIAL

DATE: OCTOBER 19, 2026

I.

BACKGROUND

Defendants

5470 San Vicente LLC ("5470"), Fred Leeds Property Management, Inc. ("Fred Leeds"), and Maximilian Robert Leeds ("Leeds") (hereinafter "Defendants") move to compel the independent mental examination of Plaintiff Mabas Bausley ("Plaintiff"). To date, the motion remains unopposed.

Plaintiff

Mabas Bausley ("Plaintiff") moves for a protective order barring the taking of Plaintiff's deposition. The motion is opposed. No reply appears on file.

II.

LEGAL

STANDARDS

Absent a

stipulation, a court order is required for a mental examination. (Code Civ. Proc., § 2032.320, subd. (a).) The examination will be limited to whatever condition is "in controversy" in the action.

The standard for good cause requires the moving party to produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) The examination may not include any diagnostic test or procedure that is painful, protracted, or intrusive and the examination is conducted at a location within 75 miles of the residence of the examinee. (Code Civ. Proc., § 2032.220, subd. (a).) "This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2032.250, subd. (a).)

A Court

may make any order that justice requires to protect a party from "unwanted annoyance, embarrassment or oppression or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (b).) The burden of proof is on the party seeking the protective order to show "good cause" for the order he or she seeks. (Fairmont Insurance Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) A motion for a protective order "shall be

accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2025.420, subd. (a).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

III.

DISCUSSION

Protective

Order

On the protective order, Plaintiff only moves to prevent the deposition from resuming. Plaintiff appeared on September 12, 2025, and after one hour counsel elected to terminate the deposition. The sought after protective order is proper upon termination of a deposition. (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1014-1015.)

Defendants challenges the necessity of the motion based on a representation of no intent to seek enforcement of the right to continue with the deposition. Defendants also cite to the August 18, 2025, order compelling the IME by September 4, 2025, for which Plaintiff failed to appear. Defendants request denial on the imposition of any sanctions.

The motion for protective order is effectively unopposed in terms of the sought after relief. The motion for protective order is therefore granted.

IME

The protective order dovetails into Plaintiff's competence to sit for a deposition, an area of inquiry for Defendants in their motion to compel the IME. The August 18, 2025, order states in relevant part: “The first order provided the following examination guidelines: The examination will consist of the following: MMPI-3 (MMPI-3), Million Clinical Multiaxial Inventory (MCMI-IV), Personality Assessment Inventory (PAI), Mini-Mental State Examination-2 (MMSE-2), PTSD Checklist with Life Events Checklist (PCL-5 with LEC-5), Structured Clinical Interview for DSM-5 (SCID-5), Structured Interview of Reported Symptoms, 2nd Edition (SIRS-2), Structured Inventory of Malingered

Symptomatology (SIMS), Substance Abuse Subtle Screening Inventory (SASSI-4), Beck Hopelessness Inventory (BHI)."

Following the non-appearance, but after the one-hour deposition session, Defendants filed a renewed motion on October 17, 2025. The renewed motion identifies the following items: "1. MMPI-3 (MMPI-3) 2. Million Clinical Multiaxial Inventory (MCMI-IV) 3. Personality Assessment Inventory (PAI) 4. Mini-Mental State Examination-2 (MMSE-2) 5. PTSD Checklist with Life Events Checklist (PCL-5 with LEC-5) 6. Structured Clinical Interview for DSM-5 (SCID-5) 7. Structured Interview of Reported Symptoms, 2nd Edition (SIRS-2) 8. Structured Inventory of Malingered Symptomatology (SIMS) 9. Substance Abuse Subtle Screening Inventory (SASSI-4) 10. Beck Anxiety Inventory (BAI), Beck Depression Inventory (BDI-II) 11. Beck Hopelessness Inventory (BHI)." The sought after examination appears as a duplicate of the relief granted in the prior issued order.

The motion was originally set for November 10, 2025, then continued to February 20, 2026, in order to allow Plaintiff to file a protective order. At the time of the February 20, 2026, hearing, the court noted the purpose of the protective order as to the deposition and acknowledged the submitted medical records indicating vascular atrophy leading to cognitive decline, and the possibility of Alzheimer's. The court raised concern for appointment of a guardian (and/or perhaps referral to Probate court for appointment of a conservator).

Plaintiff perhaps presumably seeks to render the IME unnecessary by presentation of the medical records, but the lack of opposition and reliance on records in no way negates Defendants' right to make their own independent conclusions rather than rely on Plaintiff. Defendants argue their right to such discovery as well.

The motion for the IME while redundant still remains unopposed. No reasonable basis for denial of the IME appears. The court grants the motion. The parties may alternatively agree to a renewed date under the prior order, thereby rendering this motion moot, with Defendants reserving the right to seek discovery sanctions upon further non-compliance with any ordered appearance as well. (See Code Civ. Proc., § 2032.420.)

IV.

CONCLUSION

The unopposed motions are both granted. Defendants are barred from resuming the deposition of Plaintiff. The medical examination of Plaintiff shall occur within the next 30 days, with the report provided to Plaintiff's counsel.

Defendants make no request for sanctions. (Code Civ. Proc., § 2032.250, subd. (b).) The court declines to impose sanctions on the protective order. (Code Civ. Proc., § 2025.420, subd. (h).) The motion while proactive also appears unnecessary given the lack of any motion to compel the resumption of the deposition and representation against any such efforts.

Moving
parties to give notice.

Dated: July
22, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court